

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JHAKING AARON and ENA JENKINS,

Plaintiffs,

- against -

THE CITY OF NEW YORK, NZINGA BISHOP,
RUBEN FELIPE CARDENAS, and
GABRIEL ANDREW,

Defendants.

-----X

Index No.

Plaintiffs designate
Kings County as
place of trial.

The basis of the
venue is the
location of
occurrence.

S U M M O N S

Plaintiffs reside at:

JHAKING AARON
233 Sand Street, #35
Brooklyn, NY 11201

County of Kings

ENA JENKINS
7804 Cliffdale Rd.
Fayetteville, NC 28314

To the above named defendant(s):

YOU ARE HEREBY SUMMONED to answer the complaint in this action and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance, on the Plaintiff's attorney within 20 days after the service of this summons, exclusive of the day of service (or within 30 days after service is complete if this summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgement will be taken against you by default for the relief demanded in the complaint.

Dated: New York, New York
March 20, 2020

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs
JHAKING AARON and ENA JENKINS
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

The City of New York, 100 Church Street, New York, New York 10007
Nzinga Bishop, c/o: PSA 3rd Precinct, New York, New York
Ruben Felipe Cardenas, c/o: PSA 3rd Precinct, New York, New York
Gabriel Andrew, C/O: PSA 3rd Precinct, New York, New York

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
JHAKING AARON and ENA JENKINS,

Index No.

Plaintiffs,

- against -

VERIFIED COMPLAINT

THE CITY OF NEW YORK, NZINGA BISHOP,
RUBEN FELIPE CARDENAS, and
GABRIEL ANDREW,

Defendants.

-----X
Plaintiffs, complaining of the defendants, by their
attorneys, SCHMELKIN ASSOCIATES, P.C., hereby sets forth and
alleges, upon information and belief, as follows:

PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF JHAKING AARON

1. That, on January 5, 2019, the plaintiff, **JHAKING AARON**, was a resident of the County of Kings, City and State of New York.

2. That, at all times hereinafter mentioned, and on January 5, 2019 the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

3. That, at all times hereinafter mentioned, and on January 5, 2019 the defendant, **NZINGA BISHOP** (hereinafter referred to as "**BISHOP**"), was and still is a resident of the City and State of New York.

4. That, at all times hereinafter mentioned, and on January 5, 2019 the defendant, **RUBEN FELIPE CARDENAS** (hereinafter referred to as "**CARDENAS**"), was and still is a resident of the City and State of New York.

5. That, at all times hereinafter mentioned, and on January 5, 2019 the defendant, **GABRIEL ANDREW** (hereinafter referred to as "**ANDREW**"), was and still is a resident of the City and State of New York.

6. That, the plaintiff, **JHAKING AARON**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on March 28, 2019, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **JHAKING AARON**, testified at an oral examination pursuant to the General Municipal Law on March 16, 2020; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

7. That on January 5, 2019, the plaintiff, **JHAKING AARON** was on the premises known as 233 Sands Street, on the third floor hallway, in the County of Kings, City and State of New York.

8. That, the defendants, their agents, servants, and/or employees were investigating an incident occurring at the above location, not involving the plaintiff, **JHAKING AARON**.

9. That the plaintiff, **JHAKING AARON**, was in the process of going to sleep and retiring for the evening, at his apartment located at the above location.

10. That the plaintiff, **JHAKING AARON**, heard individuals arguing in the hallway thereat, and went to investigate the situation.

11. That the defendants, their agents, servants, and/or employees, thereafter spoke with the plaintiff, **JHAKING AARON**.

12. That the plaintiff, **JHAKING AARON**, thereafter was shot by a taser by the defendants, their agents, servants, and/or employees on several occasions, without probable cause, without reasonable cause and without justification.

13. That the plaintiff, **JHAKING AARON**, thereafter was shot with "pepper spray", on several occasions by the defendants, their agents, servants, and their employees, without probable cause, without reasonable cause and without justification.

14. That the plaintiff, **JHAKING AARON**, thereafter became ill, had passed out, and was taken by ambulance, to Brooklyn Hospital for medical treatment, due to the injuries which he sustained due to the conduct of the defendants, their agents, servants, and/or employees.

15. That the plaintiff, **JHAKING AARON**, was thereafter under the custody, and control of the defendants, their agents, servants, and/or employees, whereby he was questioned, and was not advised of the charges against him, which took place at various

precincts, operated and controlled by the defendants, their agents, servants, and/or employees.

16. That the plaintiff, **JHAKING AARON**, was thereafter taken by the defendants, their agents, servants and/or employees to Central Booking, in the County of Kings, City and State of New York.

17. That the plaintiff, **JHAKING AARON**, was thereafter caused to appear in criminal court, on several occasions wherein all charges against him were adjourned in contemplation of dismissal.

AS AND FOR A FIRST CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JHAKING AARON

18. That, the plaintiff, **JHAKING AARON**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 19 with the same force and effect as if hereinafter more fully set forth at length herein.

19. That, on January 5, 2019 the plaintiff, **JHAKING AARON** was tazered, "pepper sprayed" and assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

20. That, the plaintiff, **JHAKING AARON**, was tazered, "pepper sprayed", and assaulted/battered without justification and without cause and without excuse.

21. That, the above incident and assault/battery took place on the third floor hallway, within the premises known as 233 Sands Street, in the County of Kings, City and State of New York, and other locations wherein the plaintiff, **JHAKING AARON** was

held against his will by the defendant and/or defendants, their agents, servants and/or employees.

22. That, at all times hereinafter mentioned and on January 5, 2019 and for sometime prior thereto, defendant, **BISHOP**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

23. That, at all times hereinafter mentioned and on January 5, 2019, and for sometime prior thereto, defendant, **CARDENAS**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

24. That, at all times hereinafter mentioned and on January 5, 2019, and for sometime prior thereto, defendant, **ANDREW**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

25. That, the aforementioned incident and assault/battery of the plaintiff, **JHAKING AARON**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

26. That, by reason of the foregoing, the plaintiff, **JHAKING AARON** , was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

27. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

28. That, by reason of the foregoing, the plaintiff, **JHAKING AARON** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SECOND CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JHAKING AARON

29. That, the plaintiff, **JHAKING AARON**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 28 with the same force and effect as if hereinafter more fully set forth at length herein.

30. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers,

agents, servants and/or other employees of the defendant, **THE CITY**.

31. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were employed by the defendant, **THE CITY**.

32. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **BISHOP**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

33. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **CARDENAS**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

34. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **ANDREW**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

35. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers,

agents, servants, and/or other employees, including, but not limited to defendant, **BISHOP**, who was employed by the defendant, **THE CITY**.

36. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **CARDENAS**, who was employed by the defendant, **THE CITY**.

37. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **ANDREW**, who was employed by the defendant, **THE CITY**.

38. That, by reason of the foregoing, the plaintiff, **JHAKING AARON**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

39. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

40. That, by reason of the foregoing, the plaintiff, **JHAKING AARON**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

**AS AND FOR A THIRD CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JHAKING AARON**

41. That the plaintiff, **JHAKING AARON**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 40 with the same force and effect as if hereinafter more fully set forth at length herein.

42. That, on January 5, 2019, the plaintiff, **JHAKING AARON**, was caused to be falsely arrested and falsely imprisoned without probable cause.

43. That, the plaintiff, **JHAKING AARON**, was arrested without an arrest warrant.

44. That, the false arrest/false imprisonment took place in the hallway of premises known as 233 Sands Street, in the County of Kings, City and State of New York, and other locations wherein the plaintiff, **JHAKING AARON**, was held against his will by the defendant and/or defendants, their agents, servants and/or employees.

45. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JHAKING AARON**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

46. That, the aforementioned false arrest and false

imprisonment of the plaintiff, **JHAKING AARON**, was carried out by defendant, **BISHOP**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

47. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JHAKING AARON**, was carried out by defendant, **CARDENAS**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

48. That, the aforementioned false arrest and false imprisonment of the plaintiff, **JHAKING AARON**, was carried out by defendant, **ANDREW**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

49. That, by reason of the foregoing, the plaintiff, **JHAKING AARON**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and, upon information and belief, his injuries are permanent in nature and effect.

50. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as

well as having performed intentional acts.

51. That, by reason of the foregoing, the plaintiff, **JHAKING AARON**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A FOURTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, JHAKING AARON

52. The plaintiff, **JHAKING AARON**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraph 1 through 51, with the same force and effect as if hereinafter more fully set forth at length herein.

53. That the plaintiff, **JHAKING AARON**, did not commit any illegal act, nor did the individually named defendants have reason to believe she committed an unlawful act, either before or at the time he was falsely arrested and imprisoned, assaulted and battered, excessive force was used against him and deprived of his constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

54. That at all times hereinafter mentioned, the defendant, **BISHOP**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the

defendant, **THE CITY**.

55. That at all times hereinafter mentioned, the defendant, **CARDENAS**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

56. That at all times hereinafter mentioned, the defendant, **ANDREW**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

57. Defendants, **BISHOP, CARDENAS AND ANDREW**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

58. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived

plaintiff, **JHAKING AARON**, of the following rights, privileges and immunities secured to her by the Constitution of the United States and of the State of New York: The right of plaintiff, **JHAKING AARON** to be secure in his person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **JHAKING AARON** to be informed of the nature and cause of the accusation against him as secured to him under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **JHAKING AARON** not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

59. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendants while acting under color of state law and within the scope of their employ.

60. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY'S** custom and/or policy of arresting individuals without probable cause.

61. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY'S** custom and/or policy of arresting minorities without probable cause.

62. That the deprivation of plaintiff, **JHAKING AARON** Constitutional Rights was the result of the defendant, **THE CITY'S**

custom and/or policy of failing to discipline officers for arresting individuals without probable cause.

63. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

64. That the detaining of plaintiff, **JHAKING AARON** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

65. That the deprivation of plaintiff, **JHAKING AARON's**, Constitutional Rights was the result of the defendant, **BISHOP'S** arrest of the plaintiff, **JHAKING AARON**, without probable cause.

66. That the deprivation of plaintiff, **JHAKING AARON'S** Constitutional Rights was the result of the defendant, **CARDENAS'S** arrest of the plaintiff, **JHAKING AARON**, without probable cause.

67. That the deprivation of plaintiff, **JHAKING AARON's** Constitutional Rights was the result of the defendant, **ANDREW'S** arrest of the plaintiff, **JHAKING AARON**, without probable cause.

68. That the deprivation of plaintiff, **JHAKING AARON's** Constitutional Rights was a result of the defendant, **THE CITY's** custom and policy in failing to discipline officers for the use of excessive force.

69. That the deprivation of plaintiff, **JHAKING AARON's** Constitutional Rights was the result of **BISHOP's** use of excessive force.

70. That the deprivation of plaintiff, **JHAKING AARON'S** Constitutional Rights was the result of **CARDENAS'S** use of excessive force.

71. That the deprivation of plaintiff, **JHAKING AARON'S** Constitutional Rights was the result of **ANDREW'S** use of excessive force.

72. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **JHAKING AARON**.

73. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, as well as the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **JHAKING AARON** was caused to have his civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

74. That, by reason of the foregoing, the plaintiff, **JHAKING AARON** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue his usual and regular activities; and upon information and belief, his injuries are permanent in nature

and effect.

75. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

76. That, by reason of the foregoing, the plaintiff, **JHAKING AARON**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

PRELIMINARY STATEMENT ON BEHALF
OF PLAINTIFF ENA JENKINS

77. That, the plaintiff, **ENA JENKINS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 76 with the same force and effect as if hereinafter more fully set forth at length herein.

78. That, and on January 5, 2019, the plaintiff, **ENA JENKINS**, was a resident of the County of Suffolk, and State of New York.

79. That, at all times hereinafter mentioned, and on January 5, 2019 the defendant, **THE CITY OF NEW YORK**, (hereinafter referred to as "**THE CITY**") was and still is a domestic municipal corporation, duly organized and existing under and by virtue of the laws of the State of New York.

80. That, at all times hereinafter mentioned, and on

January 5, 2019 the defendant, **BISHOP**, was and still is a resident of the City and State of New York.

81. That, at all times hereinafter mentioned, and on January 5, 2019 the defendant, **CARDENAS**, was and still is a resident of the City and State of New York.

82. That, at all times hereinafter mentioned, and on January 5, 2019 the defendant, **ANDREW**, was and still is a resident of the City and State of New York.

83. That, the plaintiff, **ENA JENKINS**, has complied with all the conditions precedent to the commencement of the within action against the defendant, **THE CITY**; plaintiff's Notice of Claim was served on March 28, 2019, within ninety (90) days of the date that the within cause of action having been caused to accrue; that thirty (30) days have elapsed and the claim remains unpaid and unadjusted; that, the plaintiff, **ENA JENKINS**, has been excused from testifying, at an oral examination, pursuant to a stipulation; and, that this action is being commenced herewith within one (1) year and ninety (90) days of the date that the within cause of action having been caused to accrue.

84. That on January 5, 2019, the plaintiff, **ENA JENKINS** was on the premises known as 233 Sands Street in the third floor hallway, in the County of Kings, City and State of New York.

85. That the plaintiff, **ENA JENKINS**, was thrown to the ground by the defendants, their agents, servants, and/or employees herein.

86. That the plaintiff, **ENA JENKINS**, was "maced" several times in the face, eyes, and open cuts in the mouth by the defendants, their agents, servants, and/or employees.

87. That the plaintiff, **ENA JENKINS**, was "kneed" in the chest and otherwise assaulted while her ankles were shackled by the defendants, their agents, servants, and/or employees herein.

88. That an ambulance had come to the scene of occurrence, to render a medical treatment and take the plaintiff, **ENA JENKINS**, to a hospital, while under the police custody, due to the actions and otherwise assault/battery committed by the defendants, their agents, servants and/or employees herein.

89. That the plaintiff, **ENA JENKINS**, was thereafter taken by the defendant, their agents, servants, and/or employees to the PSA 3rd precinct, where she was held against her will, and was not advised of the charges against her, nor advised of her "Miranda rights", and or other rights afforded to her by the United States Constitution.

90. That the plaintiff, **ENA JENKINS**, was thereafter taken to the PSA8 precinct, and additionally held against her will and questioned by the detectives, and other agents, servants, and/or the employees of the defendant and the defendants herein.

91. That at all times, the plaintiff, **ENA JENKINS**, stated to the defendants, their agents, servants, and/or employees that she needed to take various medications, and was denied said medications.

92. That the plaintiff, **ENA JENKINS**, was thereafter taken by the defendants, their agents, servants and/or employees to Central Booking, in the County of Kings, City and State of New York.

93. That the plaintiff, **ENA JENKINS**, was thereafter caused to appear in criminal court, on several occasions wherein all charges against him were adjourned in contemplation of dismissal.

AS AND FOR A FIFTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ENA JENKINS

94. That, the plaintiff, **ENA JENKINS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 93 with the same force and effect as if hereinafter more fully set forth at length herein.

95. That, on January 5, 2019 the plaintiff, **ENA JENKINS**, was assaulted/battered by the defendant, and/or defendants by and through their agents, servants and/or employees.

96. That, the plaintiff, **ENA JENKINS**, was "maced", assaulted/battered without justification and without cause and without excuse.

97. That, the above incident and assault/battery took place within the premises known as 233 Sands Street, in the County of Kings, City and State of New York, and other locations wherein the plaintiff, **ENA JENKINS**, was held against his will by the defendant and/or defendants, their agents, servants and/or

employees.

98. That, at all times hereinafter mentioned and on January 5, 2019 and for sometime prior thereto, defendant, **BISHOP**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

99. That, at all times hereinafter mentioned and on January 5, 2019, and for sometime prior thereto, defendant, **CARDENAS**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

100. That, at all times hereinafter mentioned and on January 5, 2019, and for sometime prior thereto, defendant, **ANDREW**, was a New York City police officer, and/or agent servant and/or employee of the City, working in the scope and course of his employment as a New York City Police Officer, and was employed by the defendant, **THE CITY**.

101. That, the aforementioned assault and battery of the plaintiff, **ENA JENKINS**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, and/or defendants, while working within the scope and course of the employment with the defendant **THE CITY**.

102. That, by reason of the foregoing, the plaintiff,

ENA JENKINS , was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

103. That, by reason of the foregoing, the plaintiff, **ENA JENKINS** , has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SIXTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ENA JENKINS

104. That, the plaintiff, **ENA JENKINS** , repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 103 with the same force and effect as if hereinafter more fully set forth at length herein.

105. That, all of the aforementioned acts, committed by police officers and/or defendants, servants, and/or other employees of the defendant, **THE CITY**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

106. That the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants and/or other employees, who were

employed by the defendant, **THE CITY**.

107. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **BISHOP**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or employees of the defendant, **THE CITY**.

108. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **CARDENAS**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

109. That, all of the aforementioned acts, committed by the police officers, agents, servants and/or other employees of the defendant, **ANDREW**, were committed due to the negligence, recklessness and carelessness of the aforementioned police officers, agents, servants and/or other employees of the defendant, **THE CITY**.

110. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **BISHOP**, who was employed by the defendant, **THE CITY**.

111. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **CARDENAS**, who was employed by the defendant, **THE CITY**.

112. That, the defendant, **THE CITY**, was additionally negligent, reckless and careless in the negligent hiring, negligent retention, and negligent training of various police officers, agents, servants, and/or other employees, including, but not limited to defendant, **ANDREW**, who was employed by the defendant, **THE CITY**.

113. That, by reason of the foregoing, the plaintiff, **ENA JENKINS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

114. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

115. That, by reason of the foregoing, the plaintiff, **ENA JENKINS**, has sustained damages in an amount in excess of the

jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A SEVENTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ENA JENKINS

116. That the plaintiff, **ENA JENKINS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 115 with the same force and effect as if hereinafter more fully set forth at length herein.

117. That, on January 5, 2019, the plaintiff, **ENA JENKINS**, was caused to be falsely arrested and falsely imprisoned without probable cause.

118. That, the plaintiff, **ENA JENKINS**, was arrested without an arrest warrant.

119. That, the false arrest/false imprisonment took place within the premises known as 233 Sands Street, in the County of Kings, City and State of New York, and other locations wherein the plaintiff, **ENA JENKINS**, was held against her will by the defendant and/or defendants, their agents, servants and/or employees.

120. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ENA JENKINS**, was carried out by police officers and/or other servants, agents and/or employees of the defendant, **THE CITY**.

121. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ENA JENKINS**, was carried out by defendant, **BISHOP**, and/or other servants, agents and/or employees

of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant, **THE CITY**.

122. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ENA JENKINS**, was carried out by defendant, **CARDENAS**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

123. That, the aforementioned false arrest and false imprisonment of the plaintiff, **ENA JENKINS**, was carried out by defendant, **ANDREW**, and/or other servants, agents and/or employees of the defendant, **THE CITY**, while working within the scope and course of the employment with the defendant **THE CITY**.

124. That, by reason of the foregoing, the plaintiff, **ENA JENKINS**, was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and, upon information and belief, her injuries are permanent in nature and effect.

125. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions as well as the defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

126. That, by reason of the foregoing, the plaintiff,

ENA JENKINS has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

AS AND FOR A EIGHTH CAUSE OF ACTION
ON BEHALF OF PLAINTIFF, ENA JENKINS

127. The plaintiff, **ENA JENKINS**, repeats, reiterates, and realleges, each and every allegation as set forth in paragraphs 1 through 126, with the same force and effect as if hereinafter more fully set forth at length herein.

128. That the plaintiff, **ENA JENKINS**, did not commit any illegal act, nor did the individually named defendants have reason to believe she committed an unlawful act, either before or at the time she was falsely arrested and imprisoned, assaulted and battered, excessive force was used against her; and deprived of her constitutional rights pursuant to the Fourth, Fifth and Fourteenth Amendments as set forth in the Constitution of the United States, particularly 42 U.S.C. §1983 and the Constitution of the State of New York.

129. That at all times hereinafter mentioned, the defendant, **BISHOP**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

130. That at all times hereinafter mentioned, the

defendant, **CARDENAS**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

131. That at all times hereinafter mentioned, the defendant, **ANDREW**, was employed in his respective capacity by the defendant, **THE CITY** and was acting under the color of his official capacity and his acts were performed under the color of the policies, statutes, ordinances, rules and regulations of the defendant, **THE CITY**.

132. Defendants, **BISHOP, CARDENAS AND ANDREW**, are being sued in their personal and official capacities for violation of plaintiff's constitutional rights pursuant to 42 USC, §1983. Although defendants knew or should have known of the fact that this pattern of conduct was carried out by their agents, servants and/or employees, the defendant, **THE CITY** has not taken any steps or made any efforts to halt this course of conduct, to make redress to the plaintiff or other citizens injured thereby, or to take any disciplinary action whatever against any of their employees or agents.

133. The unlawful and illegal conduct of the defendants, their agents, servants and/or employees and each of them, deprived plaintiff, **ENA JENKINS**, of the following rights, privileges and immunities secured to her by the Constitution of the United States

and of the State of New York: The right of plaintiff, **ENA JENKINS** to be secure in her person and effects against unreasonable search and seizure under the Fourth, Fifth and Fourteenth Amendments to the Constitution of the United States; the right of plaintiff, **ENA JENKINS**, to be informed of the nature and cause of the accusation against her as secured to her under the Sixth and Fourteenth Amendments to the Constitution of the United States; and the right of plaintiff, **ENA JENKINS**, not to be deprived of life, liberty or property without due process of law, and the right to the equal protection of the laws secured by the Fourteenth Amendment to the Constitution of the United States.

134. That the deprivation of plaintiff's Constitutional rights was the result of the unconstitutional acts of defendants while acting under color of state law and within the scope of their employ.

135. That the deprivation of plaintiff's Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting individuals without probable cause.

136. That the deprivation of plaintiff, **ENA JENKINS's** Constitutional rights was the result of the defendant, **THE CITY's** custom and/or policy of arresting minorities without probable cause.

137. That the deprivation of plaintiff, **ENA JENKINS** Constitutional Rights was the result of the defendant, **THE CITY's** custom and/or policy of failing to discipline officers for

arresting without probable cause.

138. That the said customs and/or policies may be inferred from the existence of other similar Civil Rights actions that have been brought against the defendant, **THE CITY**.

139. That the detaining of plaintiff, **ENA JENKINS** without probable cause or justification was the result of customs and/or policies adopted by the defendant, **THE CITY**.

140. That the deprivation of plaintiff, **ENA JENKINS** Constitutional Rights was the result of the defendant, **BISHOP'S** arrest of the plaintiff, **ENA JENKINS**, without probable cause.

141. That the deprivation of plaintiff, **ENA JENKINS'S** Constitutional Rights was the result of the defendant, **CARDENAS'S** arrest of the plaintiff, **ENA JENKINS**, without probable cause.

142. That the deprivation of plaintiff, **ENA JENKINS'S** Constitutional Rights was the result of the defendant, **ANDREW'S** arrest of the plaintiff, **ENA JENKINS**, without probable cause.

143. That the deprivation of plaintiff, **ENA JENKINS'S** Constitutional Rights was a result of the defendant, **THE CITY'S** custom and policy in failing to discipline officers for the use of excessive force.

144. That the deprivation of plaintiff, **ENA JENKINS'S** Constitutional Rights was the result of **BISHOP'S** use of excessive force.

145. That the deprivation of plaintiff, **ENA JENKINS 'S** Constitutional Rights was the result of **CARDENAS'S** use of

excessive force.

146. That the deprivation of plaintiff, **ENA JENKINS** 's Constitutional Rights was the result of **ANDREW**'s use of excessive force.

147. That the customs and/or policies adopted by the defendant, **THE CITY** exhibited a deliberate indifference to the Constitutional rights of plaintiff, **ENA JENKINS**.

148. That by reason of the allegations as set forth in all of the aforementioned causes of actions, including, but not limited to the plaintiff's false arrest, false imprisonment, assault and battery, as well as the negligence of the defendant and/or defendants, in the negligent hiring, negligent retention, and negligent training of its various employees and/or police officers, the plaintiff, **ENA JENKINS** was caused to have her civil rights as guaranteed under the U.S. Constitution, including, but not limited to the Fourth, Fifth and Fourteenth Amendments, violated by the defendant and/or defendants herein, as set forth under 42 U.S.C. Section 1983.

149. That, by reason of the foregoing, the plaintiff, **ENA JENKINS** was injured; was rendered sick, sore, lame and disabled; was caused to undergo hospital and medical treatment and advice; was unable to pursue her usual and regular activities; and upon information and belief, her injuries are permanent in nature and effect.

150. That this action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving the

defendant and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

151. That, by reason of the foregoing, the plaintiff, **ENA JENKINS**, has sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

WHEREFORE, plaintiff, **JHAKING AARON**, demands judgment against the defendants, on the First, Second, Third, and Fourth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York as well as the costs, disbursement and legal fees pursuant to 42 U.S.C. Section 1988 of these causes of action; and plaintiff, **ENA JENKINS** demands judgment against the defendants, on the Fifth, Sixth, Seventh and Eighth causes of actions in an amount in excess of the jurisdictional limits of all of the lower Courts of the State of New York together with interest, as well as the costs, disbursements and legal fees pursuant to 42 U.S.C. Section 1988, of these causes of action.

Dated: New York, New York
March 20, 2020

Yours, etc.

SCHMELKIN ASSOCIATES, P.C.
Attorneys for Plaintiffs,
JHAKING AARON AND ENA JENKINS
Office & P.O. Address
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 227-8865

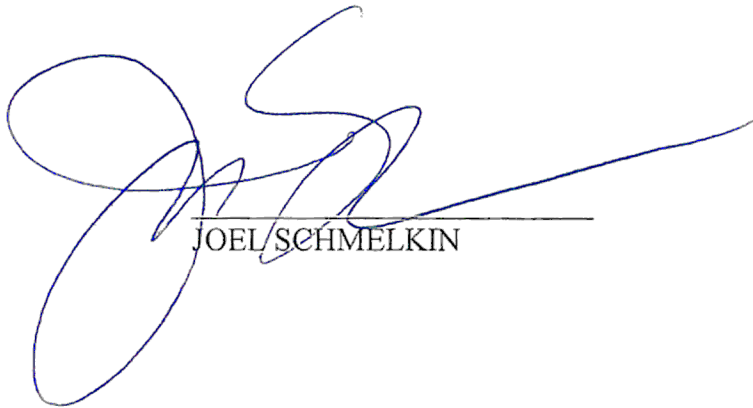
ATTORNEYS VERIFICATION

JOEL SCHMELKIN, an attorney admitted to practice law in the State of New York, affirms the following under the penalties of perjury:

I am a member of the law firm of Schmelkin Associates, P.C., the attorneys of record for the plaintiff in the within action; I have read the foregoing **COMPLAINT** and know the contents thereof; the same is true to my own knowledge, except as to the matters therein stated to be alleged on information and belief and that as to those matters, I believe it to be true. This verification is made by me and not by the plaintiff for the reason that plaintiff does not reside within the County where Schmelkin Associates, P.C. maintains its office.

The grounds of my belief as to all matters not stated upon my knowledge are conversations with plaintiff and contents of the file maintained by Schmelkin Associates, P.C..

Dated: New York, New York
March 20, 2020



JOEL SCHMELKIN

Index No.

Year 20

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

JHAKING AARON and ENA JENKINS,

Plaintiffs,

-against-

THE CITY OF NEW YORK, NZINGA BISHOP,
RUBEN FELIPE CARDENAS, and
GABRIEL ANDREW,

Defendants.

SUMMONS AND VERIFIED COMPLAINT

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

Jhaking Aaron & Ena Jenkins
Office and Post Office Address, Telephone

30 VESEY STREET, 4TH FLOOR

NEW YORK, N.Y. 10007

TEL: (212) 227-8865

Pursuant to 22 NYCRR 130-1.1-a, the undersigned, an attorney admitted to practice in the courts of New York State, certifies that, upon information and belief and reasonable inquiry, (1) the contentions contained in the annexed document are not frivolous and that (2) if the annexed document is an initiating pleading, (i) the matter was not obtained through illegal conduct, or that if it was, the attorney or other persons responsible for the illegal conduct are not participating in the matter or sharing in any fee earned therefrom and that (ii) if the matter involves potential claims for personal injury or wrongful death, the matter was not obtained in violation of 22 NYCRR 1200.41-a.

Dated:
March 20 2020

Signature

Print Signer's Name.....

Service of a copy of the within

JOEL SCHMELKIN is hereby admitted.

Dated:

Attorney(s) for

PLEASE TAKE NOTICE

Check Applicable Box

☐
NOTICE OF
ENTRY
that the within is a (certified) true copy of a
entered in the office of the clerk of the within-named Court on

20

☐
NOTICE OF
SETTLEMENT
that an Order of which the within is a true copy will be presented for settlement to the
Hon. _____, one of the judges of the within-named Court,
at _____
on _____ 20 _____, at _____ M.

Dated:

SCHMELKIN ASSOCIATES, P.C.

Attorneys for Plaintiff(s)

To:

Office and Post Office Address, Telephone
30 VESEY STREET, 4TH FLOOR